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CASE IN POINT

From Tweets to Termination: A University Professor's Controversial Online Conduct

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By:

In a time where social media blurs the lines between personal and professional conduct, an arbitration decision from earlier this year provides a critical reminder of the necessity to navigate off-duty conduct with care, while also confirming that arbitrators may prioritize a healthy workplace environment over reinstatement to avoid further conflict.

In *Board of Governors of Mount Royal University v Mount Royal Faculty Association*, the primary issue before the arbitrator was whether Mount Royal University (the University) had just cause to terminate the employment of a tenured professor, Dr. Frances Widdowson.

Dr. Widdowson, known for her controversial research and views on Indigenous policy and academic freedom, faced allegations of harassment due to her social media conduct, specifically her actions on X, formerly known as Twitter. She and her colleagues had engaged in what the arbitrator could describe only as a full-on “Twitter war.”

Several of her colleagues subsequently filed complaints, alleging her conduct on X constituted harassment. After an investigation, the University suspended Dr. Widdowson for two weeks and subsequently terminated her employment for creating a toxic work

environment and filing an allegedly vexatious complaint against a colleague. In response, the Mount Royal Faculty Association (the Association) filed 10 separate grievances alleging that the University mishandled the disciplinary process and did not conduct a fair investigation, and that the penalties imposed—suspension and eventual termination—were inappropriate in the circumstances. The Association asserted that the University did not have just cause for the suspension or termination, and that Dr. Widdowson’s academic freedom was infringed as she had a right to express her views freely within an academic context. The Association requested Dr. Widdowson be reinstated to her former position.

The University denied that there was any breach of Dr. Widdowson’s academic freedom, arguing that her actions were a breach of the collective agreement. The University’s position was that Dr. Widdowson’s social media posts were harassment and warranted disciplinary measures, including the suspension and termination imposed.

The Arbitrator’s Analysis

The arbitrator examined the case in light of the parties’ collective agreement and the University’s policies, including the principle of academic freedom. He found that the investigation conducted was fair and dismissed most of the grievances relating to the investigation into Dr. Widdowson’s conduct.

However, while affirming that some of Dr. Widdowson’s tweets constituted harassment, the arbitrator found the disciplinary measures—both the two-week suspension and the termination—were disproportionate.

In concluding that the penalties were disproportionate, the arbitrator found that while there was just cause to discipline Dr. Widdowson for her social media conduct, only a small number of instances constituted harassment. Moreover, the administration failed to consider the surrounding context of the behaviour of the others involved, including that the other participants received only a warning letter for their conduct.

The arbitrator replaced the suspension with a letter of reprimand and awarded a monetary penalty to be determined at a later date in lieu of reinstatement. In declining to award reinstatement, the arbitrator cited the irreparable damage to the employment relationship due to Dr. Widdowson’s conduct and the hostility between her and her colleagues.

Key Takeaways for Employers

The case underscores that off-duty conduct, including conduct on social media, can be grounds for workplace discipline. Employers should ensure that disciplinary actions for off-duty conduct are supported by thorough investigations, as was the case here, and proportionate responses.

The arbitrator's decision not to reinstate Dr. Widdowson's employment also highlights the importance that arbitrators place on maintaining a healthy workplace environment over reinstatement where reinstatement will likely result in igniting further workplace conflict.

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